

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

vs.

Case No. 2025-CC-

RUBEN LOPEZ, NORMA LETICIA SMITH and
ANY UNKNOWN PARTY(s) IN POSSESSION,
Defendants.

**COMPLAINT (CIVIL ACTION) SEEKING POSSESSION (EVICTION) AND
DAMAGES**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, sues the Defendants, RUBEN LOPEZ, NORMA LETICIA SMITH and ANY UNKNOWN PARTY(s) IN POSSESSION, of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida doing business as COLONIAL MOBILE MANOR.
3. Defendant, RUBEN LOPEEZ, is a natural person at all times relevant believed to reside in a mobile home located at 900 - 9th Avenue East, LOT #177, Palmetto, Manatee County, Florida, 34221.
4. Defendants, ANY UNKNOWN PARTY(s) IN POSSESSION may reside or have an interest in LOT #177 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is

without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

5. Defendant, NORMA LETICIA SMITH, is the record owner of the mobile home located on the real property on 900 9th Ave East, Lot #177, Palmetto, Florida, 34221 and is a party to this eviction pursuant to provisions of the Florida Mobile Home Act, Chapter 723 of Florida Statutes.

6. Plaintiff owns, in fee simple, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

7. The residents of the community, including Defendants, own their own mobile homes and lease their respective lots from Plaintiff; therefore, the landlord/tenant relationship between Plaintiff and the Defendant in this cause is governed by Florida Statutes Chapter 723.

8. Plaintiff, as landlord, leased to Defendants, NORMA LETICIA SMITH and RUBEN LOPEZ, LOT #177, of the above stated mobile home park at a monthly rental fee.

9. For the year, 2025, the monthly rent is the sum of \$821.00.

10. Defendant, NORMA LETICIA SMITH and RUBEN LOPEZ, is in default of the Rental Agreement with Plaintiff by failure to pay the total sum of \$1,732.00 as of February, 2025, which includes a late fee.

11. On February 7, 2025, Plaintiff served on Defendants, RUBEN LOPEZ and ANY UNKNOWN PARTY(s) IN POSSESSION, pursuant to Fla. Stat. §723.061(4) by posting on the premises of 900 9th Avenue East, Lot #177 Palmetto, FL 34221, a Demand for Payment of Lot Rental Amount demanding rent payment, and notified the Defendants that if she failed to timely pay the rent due, that the Plaintiff would evict the Defendants, pursuant to Fla. Stat. §723.061. A copy of this Notice is attached and marked Plaintiff's Exhibit "A".

12. On February 7, 2025, Plaintiff also served on Defendants, RUBEN LOPEZ and ANY UNKNOWN PARTY(s) IN POSSESSION, the Demand for Payment of Lot Rental Amount, by certified mail return receipt requested, to the last known address of the Defendants, pursuant to Fla. Stat. § 723.061(4).

13. Pursuant to Fla. Stat. § 723.061, the owner of the mobile home, NORMA LETICIA SMITH, on February 7, 2025, was also notified of the violation of the tenants by certified mail return receipt requested at her address of 2904 9th Street West, Palmetto, FL 34221.

14. A copy of the notice and the certified mail to NORMA LETICIA SMITH and is incorporated into this complaint and attached as "Exhibit B".

15. The nonpayment default has continued for more than five days after delivery of the written and posted demand to Defendants, as a result of which the Plaintiff is entitled to a judgment for eviction against the Defendants.

16. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of costs and attorney fees arising out of the action.

17. Pursuant to Section 723.061(3) of Florida Statutes, Plaintiff is entitled to summary procedure set forth in Fla. Stat. 51.011.

18. UNKNOWN PARTY(s) IN POSSESSION have no right to possession of or to reside in Lot #177 of Colonial Manor, at 900 9th Avenue East, Palmetto, Florida 34221.

18. Plaintiff has retained the law firm of William C. Price, III, P.A., to represent it in this action and is obligated to pay its attorneys a reasonable fee for their services.

19. Pursuant to Fla. Stat. §723.084 the prevailing party in this action to evict the Defendant is entitled to recover its costs and attorney fees.

20. The total lot rental amounts due as of February 7, 2025, is due, which must be paid into the registry of the Court, is \$1,732.00 plus \$821.00 due each month this action is pending.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, RUBEN LOPEZ, NORMA LETICIA SMITH and ANY UNKNOWN PARTY(s) IN POSSESSION, and such other and further relief as the Court may deem proper.

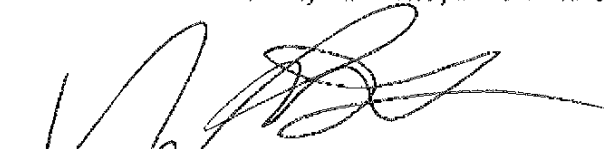
COUNT II
ACTION FOR DAMAGES (RENTAL)

20. This is an action seeking less than \$15,000.00 excluding costs, interest and attorney fees.
21. Plaintiff re-alleges the facts contained within paragraphs 1 through 19 as though fully set forth herein.
22. Defendant, RUBEN LOPEZ, owes the Plaintiff rent as of the date of filing this complaint, plus interest, costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, RUBEN LOPEZ, for damages, costs, and attorney's fees.

CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, RUBEN LOPEZ and ANY UNKNOWN PARTY(s) IN POSSESSION, at their last known address of 900 - 9th Avenuc East, LOT #177, Palmetto, Florida, 34221 and NORMA LETICIA SMITH at her last known address of 2904 9th Street West, Palmetto, FL 34221 on this 21st day of February, 2025.



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